

Rakesh Gehlot vs State Of Rajasthan on 25 August, 2022

Author: Pushpendra Singh Bhati

Bench: Pushpendra Singh Bhati

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR

S.B. Criminal Misc(Pet.) No. 5158/2019

1. Rakesh Gehlot S/o Govind Singh Gehlot, Aged About 31
Years, B/c Mali, R/o H.no. 590,
Chopasani Road, Jodhpur.
2. Kamla Devi W/o Govind Singh Gehlot, Aged About 56
Years, B/c Mali, R/o H.no. 590,
Chopasani Road, Jodhpur.

Defense Col

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Versus

1. State Of Rajasthan.
2. Smt. Sarita w/o Rakesh Gehlot, b/c Mali, r/o Mayali
Mandavata, Police Station, Mandore, Jodhpur.

---Response

For Petitioner(s)	:	Mr. Nishant Bora
For Respondent(s)	:	Mr. Mahipal Bishnoi, P.P. Mr. Sravan Kumar Sainee Mr. C.P. Soni

HON'BLE DR. JUSTICE PUSHPENDRA SINGH BHATI

Judgment Reserved on 23/08/2022 Pronounced on 25/08/2022

1. This Criminal Misc. Petition has been preferred under Section 482 Cr.P.C. praying for the following reliefs:-

"It is, therefore most respectfully prayed that the application filed by the petitioner u/s 482 Cr.P.C. may be allowed and:

(i) The order dated 07-09-19 passed by learned Additional Sessions Judge (Women Atrocities) Jodhpur Metropolitan in criminal revision No. 25/19 may kindly be quashed and set aside.

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(ii) The order dated 08-07-19 passed by learned ACMM, PCPNDT, Jodhpur Metropolitan in criminal case No. 1092/19 (State V/s Rakesh Gehlot) by which the charges were framed, may kindly be quashed and set aside."

2. Brief facts of the case as placed before this Court by the learned counsel for the petitioners are that it is the version of the prosecution, the complainant respondent no. 2, Smt. Sarita w/o Petitioner No.1 Rakesh Gehlot married him on 31.03.2013, as per Hindu rituals. And that, after marriage, she was harassed by her husband, mother-in-law and father-in-law with demands for dowry. And that, on 24.01.2014, a daughter was born to the couple, and owing to the fact that a son was not born to them, the harassment meted out to her by the aforementioned increased, and the corresponding demand for dowry was increased, to an amount of Rs. 5 lakhs. And that, on 19.04.2015, the stri-dhan of the complainant-wife was taken by the accused persons and she was ousted from her matrimonial home. And that, when she along with her father returned to her matrimonial home, with the intention that she return to her matrimonial home, she was denied the same and demands for dowry were continued to be made. And that, a complaint was lodged by the complainant-wife against her husband and in-laws, on the basis of which an F.I.R. was lodged against them, and investigation was conducted. And that, upon the completion of the same the police chargesheeted the petitioner no. 1, the husband and petitioner no. 2, the mother in law, of the complainant.

3. Learned counsel for the petitioners further submits that the petitioners preferred an application under Section 239 Cr.P.C.

(3 of 12) [CRLMP-5158/2019] seeking discharge from the charges levelled against them, but that the same was rejected by the learned Magistrate Court after hearing, vide order dated 08-07-2019 and ordered that charges be framed against the petitioner for the offences under Sections 498 (A), 406 I.P.C. And that, consequently, the petitioner filed a revision petition against the said order, which also came to be dismissed by this Court vide order dated 07-09-2019.

4. Learned counsel for the petitioners also submits that the maximum imprisonment under the Sections 498-A and 406 I.P.C.

and Section 323 I.P.C. is 3 years and 1 year respectively, and that under Section 468 Cr.P.C. the limitation period for taking cognizance against the petitioners is 3 years for the above mentioned offences.

Section 468 Cr.P.C. is reproduced hereinunder for the sake of brevity:-

468. Bar to taking cognizance after lapse of the period of limitation.--

(1) Except as otherwise provided elsewhere in this Code, no Court shall take cognizance of an offence of the category specified in sub-section (2), after the expiry of the period of limitation. (2) The period of limitation shall be--

(a) six months, if the offence is punishable with fine only;

(b) one year, if the offence is punishable with imprisonment for a term not exceeding one year;

(c) three years, if the offence is punishable with imprisonment for a term exceeding one year but not exceeding three years. (3) For the purposes of this section, the period of limitation, in relation to offences which may be tried together, shall be determined with reference to the offence which is punishable with the more severe punishment or, as the case may be, the most severe punishment.

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5. Learned counsel for the petitioners further submits that from the bare perusal of the F.I.R., it is revealed that the petitioner left the house of the petitioners on 19.04.2015, and the date of lodging the F.I.R. was 08.10.2018, and that therefore the learned Court below erred in taking cognizance against the petitioners, given the fact that the statutory bar on the same, given the period of limitation so prescribed, was complete.

6. Learned counsel for the petitioners also submits that the petitioner-husband preferred an application under Section 13 of the Hindu Marriage Act, 1955, titled Original Case No. 305/2017 before the concerned Family Court, seeking divorce from the complainant-wife, and that the said application was filed on 01.05.2017. And that, the complainant-wife filed a reply on 13.08.2018, wherein there was not even a whisper regarding any demand for dowry or any harassment meted out to her for the same.

7. Learned counsel for the petitioners further submits that the complainant-wife filed an application under Section 24 of the Act of 1955 claiming maintenance from the petitioner-husband, and that even in the said application no allegations regarding a demand for dowry are made therein. And that, both, the reply filed by the complainant and to the Section 13 application of the petitioner-husband, as above mentioned, and the said Section 24 application preferred by the complainant-wife, under the Act of 1955, are bereft of any allegations whatsoever, with regard to any demand for dowry made by the accused-petitioners herein. And that therefore the charges framed against the petitioners for the offence under Section 498-A deserve to be quashed, as the same are concocted and baseless.

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8. Learned counsel for the petitioners further submits that the offence under Section 406 I.P.C. is also not made out, on the ground that the ingredients under the said section are not made out. That, there is no specific allegation with respect to entrusting of dowry articles by the complainant-wife to any members of the family of the accused-petitioners. Neither is there any specific allegation to

point out that the said articles were demanded back by the complainant-wife, nor that the same was denied to her. And that therefore, the charges framed against the petitioners for the offence under Section 406 I.P.C. deserve to be quashed.

9. Learned counsel for the petitioners, in support of his submissions, placed reliance on the following judgments of the Hon'ble Apex Court:-

Arun Vyas and Ors. Vs. Anita Vyas (1999) 4 SCC 690 "The essence of the offence in Section 498A is cruelty as defined in the explanation appended to that section. It is a continuing offence and on each occasion on which the respondent was subjected to cruelty, she would have a new starting point of limitation. The last act of cruelty was committed against the respondent, within the meaning of the explanation, on October 13, 1988 when, on the allegation made by the respondent in the complaint to Additional Chief Judicial Magistrate, she was forced to leave the matrimonial home. Having regard to the provisions of Sections 469 and 472 the period of limitation commenced for offences under Sections 406 and 498A from October 13, 1988 and ended on October 12, 1991. But the charge-sheet was filed on December 22, 1995, therefore, it was clearly barred by limitation under Section 468(2)(c) Cr.P.C."

(6 of 12) [CRLMP-5158/2019] Kamallesh Kalra Vs. Shilpika Kalra and Ors. Criminal Appeal No. 416 and 415 of 2020 "The High Court, vide its judgment and order dated 12.10.2018, held that since no charge-sheet was filed against the brother-in-law and sister-in-law (Avnish Kalra and Suman Kalra, respectively), the petition seeking quashing of FIR on their behalf was rendered infructuous. Further, the High Court allowed the said writ petition to the extent that the writ Petitioners - Manish Kalra and Kamlesh Kalra were not liable to be proceeded Under Section 498-A, Indian Penal Code, as the FIR was filed beyond the period of limitation of three years. However, with regard to the offence Under Section 406, Indian Penal Code, it was observed that the same was a continuing offence and every day of non-return of Stridhan articles would give fresh cause of action, and thus it was held that the same would not be liable to be quashed on the ground of limitation. However, since the entrustment of the Stridhan articles was alleged only against mother-in-law Kamlesh Kalra and not the husband-Manish Kalra, the FIR Under Section 406, Indian Penal Code was quashed with regard to Manish Kalra alone, and not against the mother-in-law Kamlesh Kalra.

As regards, the finding recorded by the High Court in respect of complaint/FIR filed Under Section 498-A, Indian Penal Code, we are of the firm opinion that the same does not call for interference. In the facts of this case, it is clear that the FIR filed in this regard in 2015 was time barred, having been filed much more than three years after the separation of Manish Kalra (husband) and Shilpika Kalra (wife) and the filing of the divorce petition by the husband, both in 2009. In the facts of the case, the reasons given by the High Court for quashing the proceedings Under Section 498-A, Indian Penal Code are justified and do not call for interference by this Court.

Admittedly, after the marriage on 28.7.2007, the wife Shilpika Kalra and husband Manish Kalra were living separately since 10.6.2009. On 24.7.2009, the husband Manish Kalra had filed divorce petition in Mumbai. Even though, the divorce petition has been pending for over a decade, no allegation in the said proceedings, till date, has been made by wife-Shilpika Kalra claiming any Stridhan. It is also not disputed that all the Stridhan articles, as per the list initially furnished by the wife Shilpika Kalra (7 of 12) [CRLMP-5158/2019] on 28.1.2013, alongwith a Pay Order of ' 5,98,000/-, was tendered to the wife-Shilpika Kalra and when she did not accept the same, the Stridhan articles, as well as the Pay Order, were deposited with the Investigation Officer on 16.6.2015, and the same are still with the police. In the FIR, it is not even alleged that the complainant/wife-Shilpika Kalra ever demanded the Stridhan articles from her mother-in-law Kamlesh Kalra or her husband- Manish Kalra; or that there was refusal by the said parties to return the Stridhan. Keeping in view that the husband-Manish Kalra has already deposited the Stridhan articles, as given in the list by wife Shilpika Kalra on 28.1.2013, it cannot be said that the mother-in-law Kamlesh Kalra or the husband-Manish Kalra ever wanted to keep the Stridhan articles, as well as the money, with them. The subsequent list submitted by the complainant in 2016, of which reference has been made in the police report dated 9.1.2017, clearly appears to be an afterthought, as the same was filed after more than seven years of the filing of the divorce petition, and more than three years after the initial list was filed alongwith the complaint on 28.1.2013.

In view of the aforesaid facts, we are of the opinion that the allegations of the complainant-Shilpika Kalra with regard to non- return of the Stridhan articles and the charges Under Section 406 against the Kamlesh Kalra (or even against Manish Kalra, Avnish Kalra and Suman Kalra) are not sustainable in law. It clearly appears that the filing of the criminal complaint is a pressure tactic, having been employed by the complainant Shilpika Kalra against her husband, mother-in-law, brother-in-law and sister-in-law, which is clearly an abuse of the process of Court, and is liable to be quashed in toto."

Onkar Nath Mishra and Ors. Vs. State (NCT of Delhi) and Ors. (2008) 2 SCC 561 "It is trite that at the stage of framing of charge the court is required to evaluate the material and documents on record with a view to finding out if the facts emerging therefrom, taken at their face value, disclosed the existence of all the ingredients constituting the alleged offence. At that stage, the court is not expected to go deep into the probative value of the material on record. What needs to be considered is whether there is a ground (8 of 12) [CRLMP-5158/2019] for presuming that the offence has been committed and not a ground for convicting the accused has been made out. At that stage, even strong suspicion founded on material which leads the court to form a presumptive opinion as to the existence of the factual ingredients constituting the offence alleged would justify the framing of charge against the accused in respect of the commission of that offence.

Having noted the broad guidelines to be kept in view while deciding whether or not a charge against the accused is to be framed, we may advert to the facts of the present case to decide whether on the basis of the material placed before the trial court, it can reasonably be held that a case for framing charges against the appellants under Sections 498A and 406 I.P.C. exists. However, before undertaking this exercise it would be apposite to briefly note the essential ingredients of Sections 406 and 498A I.P.C.

According to Section 405 I.P.C., the offence of criminal breach of trust is committed when a person who is entrusted in any manner with the property or with any dominion over it, dishonestly misappropriates it or converts it to his own use, or dishonestly uses it, or disposes it of, in violation of any direction of law prescribing the mode in which the trust is to be discharged, or of any lawful contract, express or implied, made by him touching such discharge, or wilfully suffers any other person so to do. Thus in the commission of the offence of criminal breach of trust, two distinct parts are involved. The first consists of the creation of an obligation in relation to the property over which dominion or control is acquired by the accused. The second is a misappropriation or dealing with the property dishonestly and contrary to the terms of the obligation created. (See: The Superintendent & remembrancer of Legal Affairs, West Bengal Vs. S.K. Roy) The term cruelty, which has been made punishable under Section 498A I.P.C. has been defined in the Explanation appended to the said Section, to mean: (i) any wilful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health whether mental or physical of the woman; or (ii) harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person (9 of 12) [CRLMP-5158/2019] related to her to meet such demand. Therefore, the consequences of cruelty, which are either likely to drive a woman to commit suicide or to cause grave injury, danger to life, limb or health, whether mental or physical of the woman or the harassment of a woman, where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand are required to be established in order to bring home an offence under Section 498A I.P.C.

In the present case, from a plain reading of the complaint filed by the complainant on 8.11.1994, extracted above, it is clear that the facts mentioned in the complaint, taken on their face value, do not make out a prima facie case against the appellants for having dishonestly misappropriated the Stridhan of the complainant, allegedly handed over to them, thereby committing criminal breach of trust punishable under Section 406 I.P.C. It is manifestly clear from the afore- extracted complaint as also the relevant portion of the charge- sheet that there is neither any allegation of entrustment of any kind of property by the complainant to the appellants nor its misappropriation by them. Furthermore, it is also noted in the charge-sheet itself that the complainant had refused to take articles back when this offer was made to her by the Investigating Officer. Therefore, in our opinion, the very pre- requisite of entrustment of the property and its misappropriation by the appellants are lacking in the instant case. We have no hesitation in holding that the learned Additional Sessions Judge and the High Court erred in law in coming to the conclusion that a case for framing of charge under Section 406 I.P.C. was made out.

As regards the applicability of Section 498A I.P.C., in the complaint dated 8.11.1994 there is not even a whisper of a wilful conduct of appellants No. 1 and 2 of harassment of the complainant at their hands with a view to coercing her to meet any unlawful demand by them so as to attract the provisions of Section 498A read with Explanation thereto. The complaint refers to the talk the complainant purports to have had with her husband, appellant No. 3, who is alleged to have told her to come to Bijnore if she apologizes to his father; keeps him happy; obeys his sister and talks to her father (complainants) to give her Rs. 50,000/- and V.C.R. and brings these articles to Bijnore. We are convinced that the allegation of misbehaviour on the part of appellant Nos.1 and 2 (10 of 12)

[CRLMP-5158/2019] and the demand of Rs. 50,000/- and V.C.R. by them made by the complainant in her subsequent statement, dated 4.4.1995, was an after thought and not bona fide. Section 498A I.P.C. was introduced with the avowed object to combat the menace of dowry deaths and harassment to a woman at the hands of her husband or his relatives. Nevertheless, the provision should not be used as a device to achieve oblique motives. Having carefully glanced through the complaint, the F.I.R. and the charge-sheet, we find that charge under Section 498A I.P.C. is not brought home insofar as appellant Nos. 1 and 2 are concerned.

Consequently, we allow the appeal partly; quash the charge framed against all the appellants under Section 406 I.P.C.; quash the charge framed against appellant Nos. 1 and 2 under Section 498A I.P.C. and dismiss the appeal of appellant No. 3 against framing of charge under Section 498A I.P.C. Needless to add that the trial court shall now proceed with the trial untrammelled by any observation made by the Additional Sessions Judge and upheld by the High Court in the impugned order or by us in this judgment."

10. Learned counsel for the private respondent submits that the complainant-wife had was forced to leave her matrimonial home owing to harassment at the hands of her in-laws and, that the same had in fact increased after the birth of her daughter, since her husband and in-laws wanted a boy child.

11. Learned counsel for the private respondent further submits that the harassment to the complainant-wife was continuous, and that the claim of the petitioners that the complaint was time barred, is without merit.

12. Learned counsel for the private respondent, placed reliance on the judgment of this Court rendered in the decision of Naveen Kumar Vs. State of Rajasthan & Anr. S.B. Criminal Misc.

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"After hearing learned counsel for the parties as well as perusing the record of the case, this Court finds that the (11 of 12) [CRLMP-5158/2019] matrimonial offence, as narrated in the FIR, reflects a continuous offence, and therefore, the impugned orders have been rightly passed by the learned courts below."

13. On the other hand, learned Public Prosecutor as well as learned counsel for the complainant oppose the aforesaid submissions made on behalf of the accused-petitioners. They submit that at the stage of framing of charges, what is to be seen, is whether prima facie case is made out or not; and the evidence collected by the investigating agency during the investigation are sufficient to frame the charges against the petitioners, and thus, the learned trial court has not committed any error in passing the impugned order.

14. This Court finds that the learned Trial Court has rightly passed the impugned order, after looking into the record and the overall facts and circumstances of the case, and keeping into consideration that the case is at the stage of framing of charges.

15. This Court observes that whether the complaint is time barred, cannot be ascertained at this stage, as contended by the learned counsel on behalf of the petitioners, as a cursory look at the record reveals that the matrimonial offence seems to be of a continuing nature, as also observed by this Court in Naveen Kumar (supra).

16. This Court further observes that the judgments cited at the Bar by the learned counsel for the petitioners do not render any assistance to the case at hand.

17. This Court further finds that at the stage of framing of charge, the learned trial court is not required to conduct a meticulous appreciation of evidence or a roving inquiry into the (12 of 12) [CRLMP-5158/2019] same, as was laid down by the Hon'ble Apex Court in the judgments rendered in Ashish Chadha v. Asha Kumari and Ors (2012) 1 SCC 680 and State of NCT of Delhi and Ors. vs. Shiv Charan Bansal and Ors. (2020) 2 SCC 290.

18. The word "presuming" in Section 228 Cr.P.C. has been consciously inserted by the legislature, with the intention that if the Court suspects that the accused is in any way connected with the commission of the offences alleged him, then it may proceed to frame charges against the accused.

19. In light of the aforesaid observations, this Court finds that the impugned order does not suffer from any legal infirmity so as to call for any interference by this Court, at this stage.

20. Consequently, the present petition is dismissed. All pending applications stand disposed of.

(DR.PUSHPENDRA SINGH BHATI), J.

110-SKant/-

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